

Subj: DETERMINATION THAT ONLY ONE SOURCE IS REASONABLY AVAILABLE FOR A FAR PART 13 ACQUISITION UNDER THE SIMPLIFIED ACQUISITION THRESHOLD

I. BACKGROUND:

1. FAR 13.106-1(b)(1)(i) states for purchases not exceeding the simplified acquisition threshold, Contracting Officers may solicit from one source if the Contracting Officer determines that the circumstances of the contract action deem only one source reasonably available (e.g., urgency, exclusive licensing agreements, brand-name or industrial mobilization).
2. As required by FAR 13.106-3(b)(3)(i), this memorandum explains the absence of competition for this acquisition, as only one source will be solicited for this requirement (or for a portion of the requirement) and the requirement (or portion of the requirement to be sole-sourced) is not expected to exceed the simplified acquisition threshold.

II. DESCRIPTION OF ITEM OR SERVICE:

The requirement is for the purchase of one (1) InBody 770 Body Composition Analyzer for CLB 22. The item will be utilized to measure body fat percentage in accordance with the Marine Corps Body Composition and Military Appearance Program.

III. THE DETERMINATION FOR USE OF OTHER THAN FULL AND OPEN COMPETITION IS BASED ON THE FOLLOWING *(select all that apply)*:

A. X ONLY ONE RESPONSIBLE SOURCE *(select all that apply)*:

1. RESTRICTIVE RIGHTS. The source has established proprietary rights, limited rights in data, patent rights, copyrights or secret processes in the item or service required.
2. X EXCLUSIVE LICENSING AGREEMENTS. The item or service is only available from the Original Equipment Manufacturer (OEM), or there is only one authorized distributor or technical representative for the OEM.

The only available OEM for this product is InBody with the only authorized distributor being BioSpace, Inc. The InBody 770 has been the only BIA machine to be approved by USMC TECOM because it meets specific Marine Corps data security protocols and parameters to ensure standardized execution in accordance with BCP. Per MARADMIN 652/22, “the Inbody 770 is the only USMC approved BIA machine.” This MARADMIN has been in effect as of January 1, 2023.

3. OTHER REASONS.

B. BRAND NAME

Item required must be a brand name, product, or feature of a product, particular to one manufacturer.

C. URGENT AND COMPELLING. The supplies or services are of such unusual and compelling urgency that the Government would be seriously injured unless the agency is permitted to limit the number of sources from which it solicits bids or proposals. Urgent requirements are supplies or services that will result in a work stoppage, or are mission critical and the routine processing time would result in injury to the Government. The determination that the procurement for the above item/service is an urgent and compelling requirement is based on the following:

1. Date on which the requirement was first identified:
2. Required delivery date/period of performance:
3. Explanation of why delivery/commencement of services by the date mentioned above is required:

V. CERTIFICATIONS:

A. Technical / Requirements Certification: I certify that the facts and representation under my cognizance which are included in this justification are complete and accurate to the best of my knowledge and belief.

Luca London
Signature

Luca London / 769-798-7994
Name (Printed) / Phone #

2-10-25
Date

B. Contracting Officer Certification: I certify that this justification is accurate and complete to the best of my knowledge and belief.

Signature

Name (Printed) / Phone #

Date